



AN ISO 9001 & 14001 COMPANY

## **TENDER DOCUMENT**

NIT No: SRO/CON/ETS/189 dated 22.12.2023.

FOR

**Tender for “Construction of Training Center, Substation, Meter Kiosk Civil works including steel for Construction of New Technology Centre at Sriperumbudur, Tamil Nadu”**

**ENGINEERING PROJECTS (INDIA) LIMITED**  
(A GOVT. OF INDIA ENTERPRISE)  
Southern Regional Office, Chennai

## Index

| S. No. | Volume    | Description                                                                                            | No. of Pages |
|--------|-----------|--------------------------------------------------------------------------------------------------------|--------------|
| 1      | VOL - I   | Cover Page (Volume – I)                                                                                | 1            |
| 2      |           | Notice Inviting e-Tender (NIT).                                                                        | 12           |
| 3      |           | Special Instructions to Bidders for e-Tendering.                                                       | 1            |
| 4      |           | Addendum to Instruction to Tenderer.                                                                   | 1            |
| 5      |           | Additional Condition of Contract                                                                       | 15           |
| 6      |           | Bidder Information. (Annexure-I)                                                                       | 2            |
| 7      |           | Form of Tender. (Annexure-II)                                                                          | 2            |
| 8      |           | Memorandum. (Annexure-III)                                                                             | 3            |
| 9      |           | Letter of Undertaking (Annexure-IV)                                                                    | 1            |
| 10     |           | Proforma for Affidavit (Annexure-V)                                                                    | 1            |
| 11     |           | Bid Capacity (Annexure-VI) & List of existing commitment and on-going works (Annexure-A)               | 2            |
| 12     |           | Integrity Pact (Annexure-VII)                                                                          | 5            |
| 13     |           | Format for EMD BG (Annexure-VIII)                                                                      | 1            |
| 14     |           | Banker's certificate/Net worth certificate (Annexure-IX)                                               | 1            |
| 15     |           | Site visit Declaration (Annexure- X)                                                                   | 1            |
| 16     |           | Declaration for Public Procurement (Preference to make in India) (Annexure-XI)                         | 1            |
| 17     |           | Undertaking for Present Directors in the company (Annexure-XII)                                        | 1            |
| 18     |           | Banker Details (Annexure-XIII)                                                                         | 1            |
| 19     |           | Details of Works Completed During Last 7 Years & Details of On-going Works (Annexure-XIV A & XIV B)    | 1            |
| 20     |           | Declaration for no additions/deletion/corrections made in the downloaded tender document (Annexure-XV) | 1            |
| 21     |           | Manual for e-tendering portal                                                                          | 65           |
| 22     |           | Instruction to Tenderer & GCC of EPIL                                                                  | 137          |
| 23     |           | MSME Condition of Contract                                                                             | 68           |
| 24     | VOL - II  | Cover Page (Volume – II)                                                                               | 1            |
| 25     |           | Methodology for Civil works, QAP, EHS Documents , COVID-19 Manual Soil Investigation report.           | 356          |
| 26     |           | Tender Drawings                                                                                        | 6            |
| 27     | VOL - III | Cover Page (Volume – III)                                                                              | 1            |
| 28     |           | Price Bid                                                                                              | 50           |



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### **VOLUME – I**

Notice Inviting e-Tender (NIT), Special Instructions to Bidder for e-Tendering, Addendum to Instruction to Tenderer, Additional Conditions of Contract (ACC), Bidder Information, Form of tender, Memorandum, Letter of Undertaking, Proforma for Affidavit, Bid Capacity, Integrity Pact, Format for EMD BG, Bankers Certificate / Net worth Certificate, Site Visit Declaration, Declaration for Public Procurement, Undertaking for Present Directors in the company, Banker Details, Details of Works Completed During Last 7 Years & Details of On-going Works, Declaration for no additions/deletion/corrections made in the downloaded tender document, Manual for e-tendering portal, Instruction to Tenderer (ITT) & General Conditions of Contract (GCC) & MSME Condition of Contract.

**ENGINEERING PROJECTS (INDIA) LIMITED**  
(A GOVT. OF INDIA ENTERPRISE)  
Southern Regional Office, Chennai

**ENGINEERING PROJECTS (INDIA) LTD.**  
(A. Govt. of India Enterprise)  
**SOUTHERN REGIONAL OFFICE, CHENNAI**

**NOTICE INVITING e-TENDER (NIT)**

**NIT No.: SRO/CON/ETS/189**

**Date: 22.12.2023**

**Tender for “Construction of Training Center, Substation, Meter Kiosk Civil works including steel for Construction of New Technology Centre at Sriperumbudur, Tamil Nadu”.**

Engineering Projects (India) Ltd. (EPI) invites online Tender on **Item rate basis** in Single Stage Two Envelope system (Techno-commercial bid & Price Bid) through e-Tendering for **“Construction of Training Center, Substation, Meter Kiosk Civil works including steel for Construction of New Technology Centre at Sriperumbudur, Tamil Nadu”** from the eligible contractors/bidders for the following work:

| Sl. No | Name of Work                                                                                                                                                        | Estimated cost Including all and duties but excluding GST @18%                                                  | Completion Period                                                                                        | Earnest Money Deposit (EMD)                                                                      | Tender Fees         |
|--------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------|---------------------|
| 1.     | <b>Construction of Training Center, Substation, Meter Kiosk Civil works including steel for Construction of New Technology Centre at Sriperumbudur, Tamil Nadu.</b> | <b>Rs. 10,19,68,127/-</b><br>(Ten Crores Nineteen Lakhs Sixty-eight Thousand One Hundred and Twenty-seven Only) | <b>5 Months</b><br>(Five Months) which shall be reckoned from the 7th day from the date of issue of LOI. | <b>Rs.20,19,681/-</b><br>(Rupees Twenty Lakhs Nineteen Thousand Six Hundred and Eighty-one Only) | <b>Rs. 11,800/-</b> |

**1. Scope of Work**

The scope of work included but not limited to: - Completion of following works in the below mentioned buildings.

- a) The scope of the **Training Centre, Substation, Meter Kisok** for this package includes:
- Training Centre (G+2) RCC work (except RMC supply and placing). PCC works, ACC masonry works, flooring works, finishing works, including Environmental, Social, Health and safety (ESHS) works, etc.
  - Substation and Meter Kisok RCC works (except RMC supply and placing), ACC masonry works, finishing works.
  - Scope includes conducting of field tests and Third-party tests as per requirement of Quality Assurance plan (QAP), Environmental, Social, Health and safety (ESHS) services.
- b) All the essential activities required for the functional completion of each item / scope of work is also considered to be included in the rate.

- c) The Contractor has to adhere following Milestones to complete the project schedule completion period failing which Liquidated damages shall be applicable as per relevant Additional Condition of contract.
- d) Water and Power for the work shall be the responsibility of the contractor. EPI shall not be responsible for arranging the same.

### **1.1 PROJECT SITE INFORMATION:**

Location : Vallam – Vadgal, Orgadam, Kanchipuram Dist. Tamil Nadu.  
 Near Railway Station : MGR Chennai Central & Egmore (Approx 50 Km) Railway Station  
 Kanchipuram (Approx 40KM) Railway Station  
 Nearest Airport : Kamarajar International Airport, Chennai (Approx 40 km)

### **2. Time schedule of Tender activities:**

| S.no | Event Description                                                                           | Date & Time                     |
|------|---------------------------------------------------------------------------------------------|---------------------------------|
| 1    | Invitation of E –NIT                                                                        | <b>22.12.2023</b>               |
| 2    | Last Date & Time of Submission of Pre-Bid Queries to <b><i>sro.contracts@epi.gov.in</i></b> | <b>28.12.2023 upto 03:00 PM</b> |
| 3    | Last Date & Time for downloading of tender documents                                        | <b>04.01.2024 upto 03:00 PM</b> |
| 4    | Last Date & Time of submission of Tenders (Online)                                          | <b>04.01.2024 upto 03:00 PM</b> |
| 5    | Date & Time of online opening of Technical Bid                                              | <b>05.01.2024 at 03:00 PM</b>   |

### **Integrity Pact (IP) & Details of Independent External Monitor (IEM)**

This tender is covered under Integrity Pact. The particulars of IEM (independent External Monitor) of EPIL is as under:

1. Shri. Arun Kumar Sharma, Email id: Sharmaak6@gmail.com
2. Shri. Animesh Chauhan, Email id: animeshchau@gmail.com

The Integrity Pact (IP) as per format given at **Annexure- VII of Volume – 1** of this tender document is to be submitted in Rs. 100/- stamp paper (duly signed and stamped by the authorized signatory who signs in the offer) and notarized along with Techno Commercial Bid.

Only those bidders who have entered such an IP with EPIL would be competent to participate in the bidding. In other words, entering this pact would be a preliminary qualification.

### **3. Tender Documents:**

Tender documents comprising of the following are available on the website of EPI: [www.engineeringprojects.com](http://www.engineeringprojects.com) and CPP Portal: <https://etenders.gov.in/e procure/app>.

#### **Volume – I:**

Notice Inviting e-Tender (NIT), Special Instructions to Bidder for e-Tendering, Addendum to Instruction to Tenderer, Additional Conditions of Contract (ACC), Bidder Information, Form of tender, Memorandum, Letter of Undertaking, Proforma for Affidavit, Bid Capacity, Integrity Pact, Format for EMD BG, Bankers Certificate / Net worth Certificate, Site Visit Declaration, Declaration for Public Procurement, Undertaking for Present Directors in the company,

Banker Details, Details of Works Completed During Last 7 Years & Details of On-going Works, Declaration for no additions/deletion/corrections made in the downloaded tender document, Manual for e-tendering portal, Instruction to Tenderer (ITT) & General Conditions of Contract (GCC) & MSME Condition of Contract.

**Volume – II:**

Methodology for Civil works, QAP, EHS Documents, COVID-19 Manual Soil Investigation report.

**Volume - III:**

Price Bid.

In order to participate, the bidder should have Digital Signature Certificate (DSC) from one of the authorized Certifying Authorities.

Interested bidders have to necessarily register themselves on the portal <https://etenders.gov.in/eprocure/app> to participate in the bidding under this invitation for bids. It shall be the sole responsibility of the interested bidders to get them registered at the aforesaid portal for which they are required to contact.

For any technical related queries please call at 24x7 Help Desk Number 0120-4001002, 0120-4001005, 0120-6277787

International Bidders are requested to prefix+91 as country code Technical-support [eproc@nic.in](mailto:eproc@nic.in) & Policy Related-[cphp-doe@nic.in](mailto:cphp-doe@nic.in)

They may obtain further information regarding this tender from GM (Contracts) at the address given at **Clause No.25 below from 10:00 hours to 17:00 hours on all working days till the last date of online submission of Bidding Documents.**

**No special character like !, @, #, \$, %, &, \*, \_ to be included while saving the file/uploading.**

For proper uploading of the bids on the portal namely <https://etenders.gov.in/eprocure/app> (hereinafter referred to as the 'portal'), it shall be the sole responsibility of the bidders to apprise themselves adequately regarding all the relevant procedures and provisions as detailed at the portal as well as by contacting M/s CPPP., directly, as and when required, for which contact details are mentioned above. The EPI in no case shall be responsible for any issues related to timely or properly uploading/submission of the bid in accordance with the relevant provisions of Section Instruction to Bidders of the Bidding Documents.

**4. Tender Fee and EMD:-**

(a). Bidders can download the bid document from the portal ***without paying the document fee*** in advance, any time from **18:30 Hrs 22.12.2023**. However, interested bidders have to pay tender fees for participating in the tendering and submitting the bid. For this purpose, the interested bidders shall be required to pay **Rs.10,000/- (Rupees Ten thousand only) plus GST @ 18% i.e. totally Rs.11,800/- (Rupees Eleven thousand Eight Hundred only)** as non-refundable document fees in the form of Online payment to **“Engineering Projects (India) Ltd.” payable at Chennai** & bidders have to submit, the scanned copy of Tender fee receipt after depositing the tender fee online in EPI's Bank Account (as mentioned Below) along with the online bid. However, tenders submitted without, or insufficient tender fees shall be rejected.

The **GSTIN** of EPI for **Chennai** is **33AAACE0061C1ZK**

**EPI BANK details for tender fee payment as follows:**

Name of the Bank: Indian Overseas Bank.  
Branch: 116, Thiyagaraja Road, T. Nagar, Chennai  
Name of the Account Holder: Engineering Projects (India) Limited  
Account no: 009102000006493  
IFSC: IOBA0000091

**(b).** The bid must be upload online by an Earnest Money Deposit (EMD) (Original) of **Rs.20,19,681/- (Rupees Twenty Lakhs Nineteen Thousand Six Hundred and Eighty-one Only)**. This can be either in the form of Insurance Surety Bond or Account Payee Demand Draft or Fixed Deposit Receipt or Banker's cheque or Bank Guarantee of any Nationalized Bank/Scheduled Bank/Commercial bank as per the enclosed format or payment online in an acceptable form for the full amount of EMD payable favoring **"Engineering Projects (India) Limited" payable at New Delhi.** The EMD shall be **valid for a minimum period of 150 days (One hundred fifty) from the last day of submission of tender.** The earnest money (if any) will be forfeited without any prejudice to any right or remedy in case the Bidder withdraws his Tender during the validity period or in case he changes his offer to his benefits, which are not acceptable to EPI. The bid shall be valid for 90 days from the last date of submission of Tender. The validity period may be extended on mutual consent. **(EMD BG format is enclosed as Annexure-VIII).**

**EPI BANK details for BG payment as follows:**

Name of the Bank: IndusInd Bank Limited.  
Branch: M-56, Greater Kailash –II (Main market),  
New Delhi-110048.  
Name of the Account Holder: Engineering Projects (India) Limited.  
Account no: 200001601125  
IFSC: INDB0000012

**(c).** It is to be noted that being a "Works Contract" MSME benefits are not applicable as per Office memorandum of MSME (Public Procurement Policy) vide reference No. F.No.1(3)/2018-MA, Part –III dated 25th March 2022. Hence all the bidders have to pay **tender fees as per clause no. 4 (a) and EMD of the requisite amount as per clause no. 4 (b)** as specified above in the tender. If the offer is received without requisite Tender Fee & EMD, the Bid will be rejected. Since this tender is a **"Works Contract"** benefit of MSE bidder **for exemption of EMD/Tender fee is not applicable.**

**(d).** *This is to be noted that, in the absence of requisite supporting documents the benefit shall not be extended and, in such cases, if the offer is received without requisite Tender Fee & EMD the Bid will be rejected.*

**Note:** *However, Tender fee and EMD original shall be submitted by the bidder within 5 working days **"only after opening of the technical bid"** of this tender.*

**5. TECHNICAL PRE-QUALIFICATION CRITERIA:**

5.1 Bidders who fulfill the following requirements are eligible to participate in this Tender. **The joint ventures/Consortium is not accepted.**

The bidders must have experience of having successfully completed / substantially completed

following “similar works” during the last Seven (07) years ending previous day of last date of submission of tender in which the application are invited should be either of the following:

One similar completed work costing not less than the amount equal to **80% (eighty percent)** of estimated cost put to tender.

OR

Two similar completed works each costing not less than the amount equal to **50% (fifty percent)** of estimated cost put to tender.

OR

Three similar completed works each costing not less than the amount equal to **40% (forty percent)** of estimated cost put to tender.

The ‘similar works’ shall mean “**Construction of RCC Building (Residential/Commercial/ Institutional / Industrial Buildings) with composite RCC structures works.**”

**Note-** Bidder shall submit **copies of Completion certificates along with LOA / Agreement from client** clearly mentioning the nature of work, value of work, date of start, time period & actual date of completion. The experience certificate in this regard should be issued by an officer not below the rank of Executive Engineer / Project Manager / Unit Officer.

5.2 The substantially completed works shall be the works where **at least ninety percent (90%) billing of total awarded value has been achieved.** The **certified bill value of work by client/certificate** issued from client shall form the basis of evaluation.

5.3 For evaluation purpose, the completion cost of works mentioned in the Completion Certificate shall be enhanced by Seven Percent (7%) per annum till the end of month prior to date of NIT. ***The cost of free issue materials, if any, shall not be included in the completion cost of works.***

5.4 The experience certificates issued by Government Organizations / Semi Government Organizations / State Government Public Works Department / Central Government / Public Sector Undertakings / Autonomous Bodies / Municipal Bodies / Public Limited Companies listed on BSE/NSE and Private Party shall be accepted for assessing the eligibility of tender. However, the certificates issued by a Public Limited Company & Private Party must be supported by work order & TDS certificates for completed value.

5.5 Relevant Experience certificates and other documents as mentioned above fulfill the qualifying criteria duly self-attested by the tenderer shall be uploaded on online submission, The Completion certificate from Clients shall be in the name of the company who is submitting the tender. The bidder has to produce original documents for verification at the time of opening of tender or as and when demanded. The tender of any bidder shall be rejected if on detailed scrutiny, documents submitted along with the tender are found to be unsatisfactory. The decision of EPI in this regard shall be final and binding on the bidder.

5.6 **Bid Capacity:** The bidding capacity of the contractor should be equal to or more than the estimated cost of the work put to Tender (**Annexure VI**). The Bidding capacity shall be worked out by the following formula:

$$\text{Bidding Capacity} = [A \times N \times 1.5] - B$$

Where,

**A= Maximum turnover in construction works executed in any one year during the (07) last seven years ending 31.03.2023** considering the completed as well as works in progress. The value of completed works shall be brought to current costing level by enhancing at a simple rate of 7% per annum.

**N=**Number of years prescribed for completion of work for which bids have been invited.

**B=**Value of existing commitments and ongoing works to be completed during the period of completion of work for which bids have been invited.

The Bidders are requested to furnish the existing commitments on Works under execution along with stipulated period for completion of remaining for each of the work should be furnished ***in an affidavit on non-judicial stamp paper of value of Rs. 100/- duly certified that the particulars furnished are corrected as per the Proforma in Annexure- A.***

#### **6. Commercial Pre-Qualification criteria:**

6.1 Should have an **Average Annual Financial Turnover on Construction Works** of not less than **50% of the estimated cost put to tender** during the immediate last three consecutive financial years ending 31.03.2023. Turnover certificate duly certified by a Chartered Accountant along with **UDIN issued by ICAI** is also to be submitted.

6.2 Should not have incurred **any losses in more than two years** during the immediate last five consecutive financial years, ending 31.03.2023. Bidder shall submit audited copies of Annual report/Balance Sheet and Profit & Loss account statement for the last five financial years ending on 31.03.2023. i.e. **for financial year of 2018-19, 2019-20, 2020-21, 2021-22 and 2022-23.**

6.3 Should have a Banker's Certificate from a Commercial Bank for a value of **40% of Estimate Cost put to tender**. *The Bankers certificate should not have been issued earlier than Three (3) months of last date of submission of tender.*

Or

Net Worth certificate for a value of **10% of Estimate Cost put to tender** issued by certified Chartered Accountant with Unique Identification number (UDIN). The Net Worth Certificate shall be of the last financial year ending of 31st March'2023.

**The Banker's Certificate & Net Worth Certificate shall be in the format prescribed in Annexure-XI.**

6.4 Should have valid Permanent Account Number of Income Tax (Copy of PAN to be enclosed).

6.5 Should have Goods and Service Tax (GST) Registration No. (Copy of GST Registration certificate to be enclosed). In case the bidder **does not have a valid GST registration number in the state of Tamilnadu**, the same shall be obtained by the successful bidder within **one month from the date of LOI** or before release of 1st R/A bill whichever is earlier.

6.6 The bidder should have valid PF & ESI Registration and should submit all pages of ESI & PF Certificates duly signed by concerned authorities.

- 6.7 It is desired that the bidder visits the site before submitting the bid to assess the ground condition and working conditions at site and submit **Site visit declaration (Annexure-X)**. In case bidder decides not to visit site, **Bidder shall submit a self – declaration** with the bid in respect of the same declaring that “they shall be responsible for all the consequences thereof”.
- 6.8 Bidder shall submit the **undertaking** regarding details of Constitution of firm/Company along with the details of **its present directors as per enclosed (Annexure – XII)**. In case the bidder fails to submit the Constitution of firms with the bid along with the details of its firm Directors as per **(Annexure – XII)** their bid will be rejected.
- 6.9 The **Bidder should not have been blacklisted or Debarred** in any State Govt./Municipal Corporations/Central Govt./any State Govt. Organizations, Urban Local Body and/or its Undertaking company **during last 10 years** ending last day of the previous month of date of NIT. **Bidder has to submit a notarized self-declaration** with the bid in respect of the same that “**He has not been reprimand in past 10 years for poor performance** and also he has not been debarred by any of his client/ in any State Govt./Municipal Corporations/Central Govt./any State Govt. Organizations, Urban Local Body for poor performance, unprofessional/ slow work leading to cancellation of his ongoing assignment.
- 6.10 In case of any discrepancy between the downloaded tender documents from the website and the uploaded copy by the tenderer, the tender documents appearing in the website being uploaded by EPI with the tender shall hold good for contractual as well as legal purposes. The tenderer shall furnish a declaration to this effect that “**no addition/deletion/corrections have been made in the downloaded tender document being uploaded** by him/her and it is identical to the tender document appearing on the Website **(Annexure –XV)**. In case of any discrepancy between the downloaded tender documents from the website and the uploaded copy by me/us, the tender documents appearing in the website being uploaded by EPI with the tender shall hold good for contractual as well as legal purposes”.
7. (a) EPI reserves it’s right to take appropriate action including disqualification of tenderer(s) as may be deemed fit and proper by EPI at any time without giving any notice to the Bidder in this regard. The decision of EPI in the matter of disqualification shall be final and binding on the Bidders.
- (b) The credentials of the Bidders with respect to Technical & Financial criteria shall be verified and inspection of the works, if required, to be carried out by EPI. If not found satisfactory by EPI, their bid will be considered non-responsive and rejected.
8. Notwithstanding anything stated above, EPI reserves the right to assess the bidder’s capability and capacity to perform the contract satisfactorily before deciding on award of contract, should circumstances warrant such an assessment in the overall interest of EPI.
9. **Tenders must be duly signed with date and sealed. An attested copy of power of attorney/affidavit/Board Resolution executed as under shall accompany the “Tender Documents”.**
- a) In case of Sole Proprietorship, an affidavit of Sole Proprietorship and if the Tender is signed by any other person, Power of Attorney by the Sole Proprietor in favour of signatory shall be submitted.
- b) In case of Partnership firm, if Tender is not signed by all the partners, Power of Attorney in

favour of the Partner/person signing the tender/documents by all the partners authorizing him to sign the tender/documents.

c) In case of Company, copy of the Board Resolution authorizing the signatory to sign on behalf of the Company.

10. E-Bids must be submitted/uploaded along with **scanned copies** of relevant documents pertaining to **Clause no 4,5,6 of NIT and Clause no. 3 of “Addendum to Instruction to Tenderers”** duly **attested by Gazette Officer not below the rank of Executive Engineer or equivalent or Notary Public** fulfilling the qualifying criteria under **Single Stage Two Envelope bidding procedure on the CPPP portal on or before last date & time of online bid submission.**
11. No deviation shall be allowed from the terms and conditions stipulated in the ‘Tender Documents’ and tender containing deviations are liable to be rejected. In case of any unscheduled holiday taken place on the last day of issue of tender/submission of tender, the next working day will be treated as scheduled day and time for issue/submission of Tender.
12. (a) The corrigendum or addendum, extension, cancellation of this NIT, if any, shall be hosted on the EPI’s website/CPP portal <https://etenders.gov.in/eprocure/app> the bidders are required to check these websites regularly for this purpose, to take into account before uploading/submission of tender. All Corrigendum and addendum are to be uploaded duly signed & stamped with tender documents as bid Annexure.  
  
(b) **All corrigendum and Addendum shall be part of the tender document and are to be submitted duly signed and stamped by tenderer.** Even if tenderer fails to submit corrigendum and addendum duly signed by him, it will be deemed that the tenderer have gone through such corrigendum / addendum, if any, and no claim shall be entertained by EPI on account of any omission / error on his part.  
  
(c) All prospective MSME bidders are requested to get themselves registered on TReDS platform ([www.rxil.in](http://www.rxil.in)) to avail payment benefits.
13. The price bid of those bidders whose bid has been technically accepted on the basis of documents submitted shall be opened with prior intimation to them. Price Bid is to be submitted in online mode separately, and Price bid of technically qualified bidders will only be opened. Price bids of all eligible bidders will be opened only after receiving the **confirmations of PQ Credentials & BG from the concerned Department/Bank.**
14. EPI reserves the right to accept any tender or ask clarifications or reject any or all tenders or annul this tendering process without assigning any reason and liability whatsoever and to re-invite the tender at its sole discretion at any stage.
15. EPI reserves the right to extend the date of submission of the tender or cancel the Tender or accept any tender or reject any or all tenders or split the work of tender or annul this tendering process without assigning any reason and liability whatsoever and to re-invite the tender at its sole discretion.

- 16 a) In case of tie-tender, where two firms are bidding lowest, EPI reserves the right to split the work among these bidders and / or EPI will reserve the right to award the tender to any one of such bidder. Even after opening of tenders EPI may enter into agreement with more than one party or may enter into agreement for part of the total work included in the tender. In such an event, the contractor shall not be allowed to revise upward their quoted rates.
- b) EPI reserves the right to delete any item while awarding the work.
- 17 The Bidder has to examine all instructions, forms, terms and specifications in the bidding documents. Failure to furnish all information required by the bidding documents or submission of a bid not substantially responsive to the bidding documents in every respect will be at the bidder's risk and may result in the rejection of its bid.

## **18. Bidder's Confirmation**

Bidder confirms that they have read and understood and have copies of the 'Tender Documents' and have visited the site and their offer will be based on the 'tender Documents' and caters to all the works, requirements, etc. thereof.

All corrections / cuttings are to be signed by the bidder.

### **FALSE STATEMENT**

In case any of the credentials are provided to false/ fabricated, not only tender will be rejected but initiated to debar the bidder for future participation in EPI tender.

In case, at a later stage, it is found that the Bidder has submitted incorrect, false details and credentials resulting in apprehensions on the capabilities of Bidder with regard to quality & timely completion of works, financial capabilities etc. EPI can terminate this agreement solely at their option. In this eventuality the Bidder shall be liable for the losses suffered by EPI / MSME and the Bidder shall have no claim on EPI / MSME, whatsoever.

The tender / bid of any tenderer/bidder shall be rejected if in the detailed scrutiny documents submitted along with the tender/bid are found to be unsatisfactory / forged. The decision of EPI in this regard shall be final and binding on the tenderer/bidder.

No bidder will be allowed at any time on any ground whatsoever, to claim revision of or modification in the rates quoted by him. The representation of the bidder that computation / typographical or clerical error etc. has been committed in the bid and request for reversion on such plea shall not be entertained after opening of the bid.

## **19. Validity of Tender**

The Tender for the works shall remain open for acceptance for a period of **Ninety (90) days** from the last date of submission of Tender. The earnest money will be forfeited without any prejudice to any right or remedy, in case the Bidder withdraws his Tender during the validity period or in case he changes his offer to his benefits, which are not acceptable to EPI. The validity period may be extended on mutual consent.

## 20. Contract Agreement

The Bidder shall enter into a Contract Agreement with EPI within 21 days of the date of Letter of Intent or within such extended time, as may be granted by EPI. The cost of stamp papers, stamp duty, registration, if applicable on the contract, shall be borne by the Bidder. In case, the Bidder does not sign the agreement as above or **does not start the work within 7 days of the issue of Letter of Intent**, his **earnest money is liable to be forfeited** and letter of intent consequently will stand withdrawn.

## 21. Procurement Restriction for Foreign Products

21.1 Bidder should follow the circular for Restrictions on Public Procurement from certain countries by Ministry of Finance vide press note Posted On: 23 JUL 2020 10:14PM by PIB Delhi.

21.2 Contractor shall submit following Certificate for along with tender.

**“I have read the clause regarding restriction on procurement from a bidder of a countries shares a land border with India and on sub-contracting to contractors from such countries; I certify that this bidder is not from such a country or, if from such a country, has been registered with the Competent Authority and will not sub contract any work to a contractor from such countries unless such contractor is registered with the Competent Authority. I here by certify that this bidder fulfills all requirements in this regard and is eligible to be considered. {Where applicable, evidence of valid registration by the Competent Authority shall be attached}”**

## 22. MAKE IN INDIA:

**Contractors to use as much as possible, the material/service from MSEs & Local suppliers/Manufacturers for promotion of Make in India**

For Promotion of Public Procurement (Preference to Make in India) order 2017 (amended on 28.05.2018) GOI Guideline for procurement, the equivalent Indian makes of materials conforming to requisite quality in addition to List of Makes/Brands may be considered subject to approval of MSME/EPI Engineer In charge. Also “local supplier\bidder at the time of tendering, bidding or solicitation shall be required to provide self-certification in his letterhead that the item offered meets the minimum local content and shall give the details of the location(s) at which the local value addition is made”.

All the bidders (Class-I local supplier, Class-II local Supplier, Non-Local Supplier) shall provide the percentage of local content in their bid as per **Annexure-XI** irrespective of whether they are availing or not availing purchase preference under public procurement (Preference to Make in India) Policy.

## 23. Disqualification:

The tenderers may note that they are liable to be disqualified and not considered for the opening of Price Bid if;

- a. The bids submitted without of copy of Tender Fee Receipt and EMD document, the bids will be rejected.
- b. All the bids submitted by the bidders having common directors shall be summarily rejected

without assigning any reason thereof by EPI. In the absence of details on constitution of firm by the bidder, cancellation of contract / disqualification of bid / levy of penalty shall be imposed.

- c. Representation in the forms, statements and attachments submitted in the pre- qualification document are proved to be incorrect, false, and misleading.
- d. They have record of poor performance during the past 10 (ten) years such as abandoning the work, rescinding of contract for which the reasons are attributable to the non-performance of the contractor, inordinate delay in completion, consistent history of litigation / arbitration awarded against the contractor or any of its constituents or financial failures due to bankruptcy etc. in their ongoing / past projects.
- e. If bidders have submitted an incomplete tender without attaching certified supporting documents and credentials to establish their eligibility to participate in the Tender.
- f. If the tenderers attempt to influence any member of the committee, EPI reserves its right to take appropriate action including disqualification of tenderer(s) as may be deemed fit and proper by EPI at any time without giving any notice to the contractor in this regard. The decision of EPI in the matter of disqualification shall be final and binding on the Tenderers.
- g. If documents are not uploaded by the bidder as per instructions/due to special characters while saving files, the files are unable to download the bids will be disqualified.
- h. The Bidder is expected to examine all instructions, forms, terms, and specifications in the bidding documents. Failure to furnish all information required by the bidding documents or submission of a bid not substantially responsive to the bidding documents in every respect will be at the bidder's risk and may result in the rejection of its bid.
- i. In the case of existing contractors of EPI, if progress is not satisfactory in any of the projects their bid will be rejected.
- j. Bidder(s) who had a record of Court Case / Litigation / debarred History with the EPIL against earlier tender / contracts shall not be considered for this tender. Canvassing, whether directly or indirectly, in connection with NIT is strictly prohibited and the bids submitted by the bidders who resort to canvassing will be liable for rejection.

**Note:** If any tenderer withdraws his tender before the said period or issue of letter of acceptance/intent, whichever is earlier, or makes any modifications in the terms and conditions of the downloaded tender which are not acceptable to the EPIL, then the EPIL shall, without prejudice to any other right or remedy, be at liberty to forfeit entire amount of Earnest Money as aforesaid.

- 24. Only Online mode will be accepted for tender submission. No documents are required to be submitted offline by the bidders.

The bidders have to submit, the scanned copy of Tender fee receipt after depositing the tender fee online in EPI's Bank Account along with the online bid.

The scanned copy of Earnest Money deposit as mentioned in the NIT (Insurance Surety Bond, Bank Guarantee, DD, Bankers Cheque etc) shall be submitted by the bidders with their online bid.

Post tender clarification will not be sought in case of non-submission of Tender Fee or EMD of requisite amount or unconditional letter of Acceptance or Affidavit for Correctness of documents/information. In such case the bidder shall be rejected summarily without seeking any further clarification/documents.

However, Tender fee and EMD original also shall be submitted by the bidder within 5 working days “ **only after opening of the technical bid**” of this tender.

## **25. Correspondence:**

**(a) All correspondence with regard to the above shall be to the following address (By Post/In Person):**

General Manager (Contracts),  
Engineering Projects (India) Ltd.  
3D, EC Chambers, 92 GN Chetty Road  
T. Nagar, Chennai – 600 017  
Tel No. – 044 – 28156886, 28156421, 28157106  
E-mail – sro.contracts@epi.gov.in

**(b) Contact details for site related / Technical Queries / site visit:**

Shri M. MathiMathavan, Dy. General Manager  
Engineering Projects (India) Ltd.  
(A Govt of India Enterprise) Vallam -Vadagal, Oragadam, Kanchipuram District  
E-Mail :- mathi.mm@engineeringprojects.com  
Phone: +91-9962993280

**For more information on EPI, visit our website at: <https://epi.gov.in/auth/tender.php>**

**For more information on the e-tender visit website e-procurement portal <https://etenders.gov.in/eprocure/app>**

**GM (Contracts)  
Date: 22.12.2023**